

HOUSE No. 2026

The Commonwealth of Massachusetts



House of Representatives, February 24, 2025.

**In the One Hundred and Ninety-Fourth General Court
(2025-2026)**

Ordered, That the joint rules of the Senate and House of Representatives for the 194th General Court for the 2025-2026 legislative session be adopted, as follows:

Committees

1. Joint standing committees shall be appointed at the beginning of the biennial session as follows:-

A committee on Advanced Information Technology, the Internet and Cybersecurity;

A committee on Agriculture;

A committee on Bonding, Capital Expenditures and State Assets

A committee on Cannabis Policy;

A committee on Children, Families and Persons With Disabilities;

- 11 A committee on Community Development and Small Businesses;
- 12 A committee on Consumer Protection and Professional Licensure;
- 13 A committee on Emergency Preparedness and Management;
- 14 A committee on Economic Development and Emerging Technologies;
- 15 A committee on Education;
- 16 A committee on Aging and Independence;
- 17 A committee on Election Laws;
- 18 A committee on Environment and Natural Resources;
- 19 A committee on Financial Services;
- 20 A committee on Health Care Financing;
- 21 A committee on Higher Education;
- 22 A committee on Housing;
- 23 A committee on the Judiciary;
- 24 A committee on Labor and Workforce Development;
- 25 A committee on Mental Health, Substance Use and Recovery;
- 26 A committee on Municipalities and Regional Government;
- 27 A committee on Public Health;

28 A committee on Public Safety and Homeland Security;

29 A committee on Public Service;

30 A committee on Racial Equity, Civil Rights and Inclusion;

31 A committee on Revenue;

32 A committee on State Administration and Regulatory Oversight;

33 A committee on Telecommunications, Utilities and Energy;

34 A committee on Tourism, Arts and Cultural Development;

35 A committee on Transportation; and

36 A committee on Veterans and Federal Affairs.

37 Each to consist of 6 members of the Senate, and 11 on the part of the House except the

38 committees on Bonding, Capital Expenditures and State Assets, Economic Development and

39 Emerging Technologies, Public Safety and Homeland Security, Mental Health, Substance Use

40 and Recovery, Health Care Financing and Transportation which shall consist of 7 members of

41 the Senate and 13 of the House.

42 Within 4 weeks of the appointment of joint standing committees in the first annual session of the

43 General Court, each joint standing committee shall adopt rules of procedure regarding its

44 conduct that are not inconsistent with the joint rules of the two branches or the rules of the

45 Senate or House of Representatives. Said rules of procedure, together with any amendments,

shall be filed with the Clerk of the Senate and the Clerk of the House and shall be available to the public and members of the General Court on the official website of the General Court. The rules of parliamentary practice as set forth in the 2020 Edition of Mason's Manual of Legislative Procedure shall govern each joint standing committee until such time as the joint standing committee adopts rules of procedure.lxi

Except as provided by Joint Rule 1E or 1F, each matter shall be referred only to 1 joint committee for consideration and all reports of matters by joint committees shall be made to the House or the Senate, under Joint Rule 4, not to another joint committee. The committee to which a matter is initially referred may discharge the matter to another committee with jurisdiction over the matter.

Matters referred by either the Senate or the House to its committee on Ways and Means shall be considered by the respective committees of the 2 branches, acting as a joint committee, when, in the judgment of the chairs of the respective committees of the 2 branches, the interests of legislation or the expedition of business will be better served by such joint consideration. Matters may also be referred to the committees on Ways and Means, of the 2 branches, as a joint committee.

The committees on Rules, together with the presiding officers of the 2 branches, acting concurrently, may consider and suggest such measures as shall, in their judgment, tend to facilitate the business of the session and a majority vote of the 2 branches shall be required to approve such recommendations.

In order to assist the House and the Senate in their: (1) consideration and enactment of new legislation and modifications of existing laws, when either are deemed to be appropriate; (2)

evaluation of the effectiveness and administration of laws and programs previously enacted; and
(3) appraisal of the conditions and circumstances which may indicate the desirability of enacting new legislation, the various joint committees shall have the following oversight responsibilities:

(i) each joint committee shall review and study, on a continuing basis, the implementation, administration, execution and effectiveness of those laws, or parts of law, the subject matter of which is within the jurisdiction of that committee, the administrative regulations adopted to implement those laws, and those state agencies or entities having responsibilities for the administration and execution of such laws;

(ii) in carrying out these review and study activities, each committee shall determine whether such laws, administrative regulations and programs under those laws are being implemented in accordance with the intent of the General Court and whether such laws, administrative regulations and programs should be continued, curtailed or eliminated;

(iii) each committee shall also review and study any conditions and circumstances which may indicate the necessity or desirability of enacting new legislation within the jurisdiction of that committee, regardless of whether any matter has been introduced on that subject, and shall, on a continuing basis, undertake research on matters within the jurisdiction of that committee.

Committees shall coordinate oversight activities, under the direction of the presiding officers of both branches, to achieve the maximum objectives of clauses (i), (ii) and (iii).

Each committee may, upon completion of its oversight hearings, report to the General Court the results of its findings and recommendations together with accompanying corrective legislation, if any, by filing the same with the Clerk of the House of Representatives or the Clerk of the Senate. Copies of such reports shall be made available to all members electronically and to the public via

the official website of the General Court. The disposition of said reports shall be determined by the Clerks with the approval of the Speaker and the President.

The Senate or House chair of a joint committee may appoint subcommittees to investigate and study any matter referred to said subcommittee. Not less than 10 per cent of a Senate or House subcommittee's members shall be from the minority party. Chairs of subcommittees shall not be considered chairs under section 9B of chapter 3 of the General Laws. A subcommittee may, upon completion of an investigation and study, report the results of the investigation and study together with legislation, if any, by filing the same with the appointing chair of the joint committee.

Temporary employees of the general court assigned to a joint committee who are students at an accredited education institution or employees or grantees of other non-profit organizations under section 501(c)(3) of the Internal Revenue Code may receive compensation from such organization, according to that organization's regular program of providing such compensation for temporary governmental or public service employment. A temporary employee's Senate or House supervisor shall establish the employee's total compensation, shall verify that the sum of the employee's state compensation, if any, and that any outside compensation the employee is to receive under this rule would not exceed this total compensation, and shall file the written terms of the employee's compensation with the Senate or House Human Resources Office, where it shall be available for public inspection. The temporary employee shall sign an ethics agreement provided by the Senate Personnel Office or House Human Resources Office.

The Senate and House Offices of Human Resources shall publish an employee handbook for joint employees of both branches of the General Court and the responsibilities associated with

the supervision of joint employees, including payroll, shall be shared equally between said offices. The handbook shall be developed with the advice and approval of both the Counsel to the Senate and the Counsel to the House. The handbook shall address access by joint employees to the human resource related services and programs of each branch of the General Court. Joint employees shall complete any training required by either branch of the General Court, as may be agreed upon by the Senate and House Offices of Human Resources.

[Amended Jan. 6, 1882; Jan. 5, 18 83; Jan. 7, 18 84; Jan. 8 and 26, 1885; Jan. 8, 18 86; Jan. 12, 18 87; Jan. 9, 18 88; Jan. 28, 18 89; Jan. 8, 18 90; Feb. 2, 18 91; Jan. 11 and Feb. 10, 18 92; Feb. 7, 18 93; Jan. 8. 1894; Jan. 7, 18 95; Jan. 7, 18 96; Jan. 11, 18 97; Jan. 10, 18 98; Jan. 9, 18 99; Jan. 22 and 29, 1901; Jan. 6, 19 02; Jan. 9, 19 03; Jan. 8, 19 04; Jan. 6, 19 05; Jan. 4, 19 07; Jan. 5, 19 10; Jan. 4, 19 11; Jan. 1, 19 13; Jan. 12, 19 14; Jan. 2, 19 18; Jan. 1 and 8 and Feb. 21, 1919; Jan. 7, 19 20; Jan. 5, 19 21; April 17 and 30, 1925; Jan. 5, 19 27; Jan. 7, 19 31; Jan. 6, 19 37; Jan. 4, 19 39; Jan. 1, 19 41; Jan. 3, 19 45; Jan. 2, 19 46; Jan. 6, 19 47; Feb. 1, 19 49; Jan. 7, 19 53; Jan. 7, 19 59; Jan. 30, 19 61; Jan. 7, 19 63; Jan. 12, 19 65; Feb. 24, 19 65; Mar. 10, 19 66; Jan. 30, 19 67; Jan. 7, 1971 ; July 23, 1974 ; Sept. 30 and Oct. 12, 1976 ; Nov. 3, 1981 ; Dec. 21, 1981 ; Mar. 15, 1982 ; Oct. 3, 1983 ; June 3, 1985 ; Jan. 25 and Mar. 14, 1988 ; Mar. 27, 1995 , June 12, 1995 ; July 17, 2003 ; Jan. 26, 2005; July 21 and September 20, 2005; Feb. 20, 2007; Feb 12, 2009; Feb. 15, 2017; Mar 7, 2019; Mar. 25, 2021; Feb. 16, 2023.]

1A. All meetings of joint committees acting concurrently, Senate and House standing committees, special committees of the Senate and House of Representatives, and joint special committees and committees of conference on the disagreeing votes of the 2 branches shall be open to the public, unless a majority shall vote otherwise. [Adopted July 17, 1973. Amended July 18, 1974; Feb. 12, 2009.]

135 1B. A joint standing committee shall hold a public hearing on each matter referred to it in each
136 legislative session. [Adopted June 3, 1985; Amended Feb. 12, 2009.]

137 1C. (1) All joint standing committees shall schedule committee hearings and executive sessions
138 upon agreement of the chairs and so as not to conflict, to the extent feasible, with the schedules
139 of other committees and, to the extent feasible, the day of the week and times during that day set
140 aside for formal sessions by the respective branches. The chairs shall record the attendance of
141 members during committee hearings and shall cause the attendance to be published on the
142 official website of the General Court alongside the livestream of the hearing archived on said
143 website pursuant to paragraph (3). [Adopted June 3, 1985; Amended June 12, 1995; Mar. 7,
144 2019.]

145 (2) The schedule of committee hearings shall designate which branch will preside over each
146 hearing, and the chairs shall ensure, to the extent practicable, that each branch presides over an
147 equal number of hearings. The committee staff of the branch presiding over the hearing shall be
148 responsible for the administrative work necessary to conduct the hearing, including, but not
149 limited to, securing a hearing location, arranging for the publication of the agenda and
150 instructions for public participation, recording the attendance of committee members, and
151 processing the individuals seeking to testify at the hearing either physically or remotely. Prior to
152 the hearing, the staff of each branch shall produce a plain-language summary of each bill to be
153 heard from their respective branches, which shall be made available on the official website of the
154 General Court.

155 (3) All hearings of joint standing committees shall be conducted in-person with the option of
156 remote participation available to the public; provided, however, that the members of said joint

157 standing committees shall be physically present at the hearing location where in-person public
158 testimony is offered. All joint standing committees, in the conduct of their hearings, shall utilize,
159 to the extent practicable, online platforms or systems that allow for synchronous, audio-visual
160 communication between the members of the committee and individuals offering testimony
161 remotely. All hearings of joint standing committees shall be publicly livestreamed on the official
162 website of the General Court which shall display and transmit, in real-time, the audio-visual
163 attributes of public testimony offered remotely; provided further, that said livestream shall be
164 archived on the official website of the General Court for the duration of the legislative session.
165 Members of the Senate and House of Representatives may offer remote testimony before joint
166 standing committees of which they are not a member. The chairs of the joint standing
167 committees shall use best efforts to prioritize the testimony of those physically present at the
168 hearing location and may, in their discretion, allow individuals participating in-person a greater
169 amount of time to testify than those participating remotely. All notices of hearings of joint
170 standing committees issued pursuant to Joint Rule 1D at which public testimony is being
171 solicited shall include instructions on how to offer testimony both in-person and remotely.

172 1D. All meetings of joint standing committees, and special joint committees of the Senate and
173 House of Representatives, and joint special committees and committees of conference on the
174 disagreeing votes of the 2 branches shall be open to the public, and any person shall be permitted
175 to attend any such meeting unless such committee convenes in executive session, as provided
176 herein. All joint standing committees shall determine a schedule for committee hearings to be
177 held from the beginning of the first annual session through the third Wednesday in December in
178 said session. These committee schedules shall be submitted to the Clerks of the Senate and
179 House of Representatives who shall cause them to be published on the official website of the

180 General Court. Establishment of such schedules shall not preclude joint standing committees
181 from scheduling additional hearings or meetings as needed. No executive session shall be held
182 until after the committee has first convened in an open session for which notice has been given,
183 the presiding officer has stated the purpose of the executive session, a majority of the committee
184 members present has voted to go into executive session, the vote of each member has been
185 recorded on a roll call vote, and the presiding officer has stated before the executive session if
186 the committee will reconvene after the executive session. The records of all such roll calls shall
187 be kept in the offices of the committee for the duration of the General Court during which said
188 vote was recorded, and the committee shall cause the record of such roll call to be available on
189 the official website of the General Court within 48 hours of such roll call.

190 All joint standing committees, and special joint committees of the Senate and House of
191 Representatives, shall notify the Sergeant-at-Arms of the time, place and agenda of all public
192 hearings and executive sessions not less than 72 hours prior to the time of such meetings. If
193 public testimony is being solicited, agendas shall include: (i) an electronic mail address and
194 physical mail address for the submission of testimony, (ii) instructions on how the public may
195 participate remotely, and (iii) the committee reporting deadline under Joint Rule 10 for the
196 matters being heard. The Sergeant-at-Arms shall notify the Clerks, who shall inform all members
197 electronically and publish such information on the official website of the General Court
198 whenever practicable.

199 Committees shall make written testimony received by the committee publicly available;
200 provided, however, that the committee shall adopt rules relative to the public availability of
201 written testimony received by the committee and such rules shall contain limitations on the
202 sharing of testimony that includes sensitive personal information or information that may

203 jeopardize the health, wellness or safety of the testifier or others. The rules relative to the public
204 availability of written testimony adopted by the committee shall be disclosed in the hearing
205 agendas and shall inform testifiers that their written testimony may be made publicly available
206 by the committee.

207 Nothing contained in this rule shall prohibit a joint standing committee or special joint
208 committee of the Senate and the House of Representatives from taking appropriate action
209 including, but not limited to, the exclusion of a person from a committee meeting in order to
210 prevent the disruption of or interference with committee proceedings. All meetings of joint
211 standing committees, and special joint committees of the Senate and House of Representatives,
212 shall be limited to no more than 50 bills to be discussed in a hearing, unless it can be determined
213 that all of the bills being considered are of the same subject matter.

214 The 72-hour requirement shall be suspended in an emergency only after all reasonable efforts
215 have been made to contact all committee members and upon a recorded vote of at least a
216 majority of the members of each branch appointed to the committee, but not less than two-thirds
217 of the members of each branch voting.

218 A meeting of a committee may be recorded by a person in attendance by means of a recorder or
219 any other means of audio/visual reproduction except when a meeting is held in executive session;
220 provided, that a person seeking to record a meeting of a committee notifies the chairs of the
221 committee prior to commencing such recording; and provided further that during such recording
222 there is no interference with the conduct of the meeting.

223 The chairs of each committee shall preserve decorum and order during each committee hearing.

224 Persons attending hearings shall be required to refrain from the use of cellular telephones,

225 beepers and pagers. The use of visual aids including, without limitation, posters, displays, or
226 charts shall be permitted only upon approval of the chairs.

227 At any time after a matter has had a hearing, a chair of a committee may initiate a vote thereon if
228 the matter is filed in the branch of said chair. Said vote shall be taken from each member of the
229 branch of said chair, and if a majority of the members of said branch voting on the matter vote in
230 support of the matter, then the matter shall be reported favorably and referred to the branch in
231 which the matter was filed. The Senate chair and the Senate members of the committee shall
232 have no authority or ability to impede the vote on a bill in the committee that was filed in the
233 House, and the House chair and the House members shall have no authority or ability to impede
234 the vote on a bill in the committee that was filed in the Senate.

235 A chair of the committee shall provide to the members of their branch on the committee a
236 comprehensive summary of each matter prior to a vote thereon, and all matters receiving a
237 favorable report shall contain, in addition to a summary, (i) a document clearly marking any
238 changes made by the committee to the underlying matter, and (ii) a document clearly marking
239 any changes to any general or special law proposed by the matter, which shall be made publicly
240 available. Any vote of a committee on a matter shall be taken by roll call or electronic poll of
241 each member of the branch calling the vote; provided, however, that the committee shall cause
242 the record of such roll call to be available on the official website of the General Court within 48
243 hours of such roll call along with a notation indicating whether a committee member voting on
244 the matter attended the committee hearing at which the matter was heard. [Adopted June 3, 1985.
245 Amended June 12, 1995; Feb. 20, 2007; Mar. 14, 2013; Mar. 7, 2019.]

1E. The joint standing committee on Health Care Financing shall review all legislation relating to health care to evaluate the appropriateness and fiscal effect of such legislation. A matter within the jurisdiction of said committee may, if appropriate, initially be referred to another joint standing committee sharing jurisdiction of the subject-matter. Any matter reported favorably by such joint standing committee shall be referred to the joint committee on Health Care Financing; provided, however, that notwithstanding any rule to the contrary, any such matter so reported shall not be read a first time in the branch in which the report was received. The next favorable report on any such matter, if made by a joint committee, shall be made in accordance with Joint Rule 1D. Such next favorable report shall be considered the first reading. The branch of origin for any such bill so reported shall be the branch receiving such favorable report.

In compliance with section 38A of chapter 3 of the General Laws, the joint committee on Health Care Financing when reporting on bills shall include a fiscal note prepared under section 3A of chapter 29 of the General Laws, showing the estimated cost or the fiscal effect of the proposed legislation, if, in the opinion of said committee, such cost or fiscal effect exceeds the sum of \$100,000; provided, however, that any matter reported by the committee on Health Care Financing with a fiscal effect of less than \$100,000 shall not be referred, under the rules, to the committee on Ways and Means.[Adopted Jan. 26, 2005; Amended May 19, 2005; Feb. 20, 2007; Feb. 12, 2009.]

1F. The joint committee on Bonding, Capital Expenditures and State Assets shall review all legislation providing for the giving, loaning or pledging of the credit of the Commonwealth (see Article LXII of the Amendments to the Constitution, as amended by Article LXXXIV). Said committee shall be responsible for evaluating such legislation and determining the appropriateness of enacting legislation containing increased bond authorizations for the

269 Commonwealth. The committee shall periodically review and hold open public hearings,
270 accepting oral and written testimony on the status of the bonds and notes of the Commonwealth,
271 including (1) general obligation debt; (2) dedicated income tax debt; and (3) special obligation
272 debt. The committee shall also, in its continuing study of the state's bonding practices, review
273 the Commonwealth's liabilities relative to (a) state-supported debt; (b) state-guaranteed debt; and
274 (c) indirect obligations.

275 Any bill providing for borrowing for new projects and requiring the Commonwealth to issue
276 bonds for such purpose shall, prior to its reference to the committee on Ways and Means, be
277 referred to the committee on Bonding, Capital Expenditures and State Assets for report on its
278 relationship to the finances of the Commonwealth. A measure may initially be referred to
279 another joint committee with jurisdiction over the subject matter before being referred to the
280 committee on Bonding, Capital Expenditures and State Assets; provided, however, that
281 notwithstanding any rule to the contrary, any such matter so reported shall not be read a first time
282 in the branch in which the report was received. The next favorable report on any such matter by
283 the committee on Bonding, Capital Expenditures and State Assets shall be considered the first
284 reading. The branch of origin for any such bill so reported shall be the branch receiving such
285 favorable report.

286 The provisions of Joint Rule 4 shall apply to all matters referred to the joint committee on
287 Bonding, Capital Expenditures and State Assets, except that where constitutionally prohibited.
288 The joint committee shall consult with the various agencies of the Executive branch and the
289 office of the Treasurer and Receiver-General relative to project expenditures, availability of
290 funds, the sale of new bonds and the resultant debt obligations, federal reimbursements and other
291 related funding and bonding issues.

292 The joint committee on Bonding, Capital Expenditures and State Assets shall be authorized to
293 conduct hearings relative to the statutory authority of the Executive branch and the Treasurer and
294 Receiver-General in the issuance and sale of bonds and notes and the expenditure of capital
295 funds by the various agencies and authorities of the Commonwealth. The committee shall
296 determine whether such laws, administrative regulations and programs are being implemented in
297 accordance with the intent of the General Court.

298 The committee on Bonding, Capital Expenditures and State Assets shall be authorized to report
299 to the General Court from time to time on the results of its hearings and to file drafts of
300 legislation necessary to carry its recommendations into effect.

301 Messages from the Governor setting terms of bonds and notes, or for the de-authorization or
302 authorization of bonds and notes, shall be referred to the committee on Bonding, Capital
303 Expenditures and State Assets.

304 1G. The President of the Senate, the Speaker of the House of Representatives, Minority Leader
305 of the Senate, Minority Leader of the House of Representatives, the Senate and House chairs and
306 the Senate and House ranking minority members of the joint committee on Public Safety and
307 Homeland Security may receive security clearance from federal and state homeland security
308 officials in order to be granted access to confidential homeland security briefings, information
309 and materials. The President of the Senate, the Speaker of the House of Representatives, the
310 Senate and House committee chairs and the Senate and House ranking minority members may
311 designate 1 or more members of their staff who may receive such security clearance.

312 Any person who receives security clearance under this rule shall sign all confidentiality
313 agreements required by homeland security officials. The breach of any such confidentiality

314 agreement shall constitute a violation of the Joint Rules of the Senate and House of
315 Representatives. Any alleged violation of a confidentiality agreement shall be referred for
316 investigation to the Senate committee on Ethics and Rules or the House committee on Ethics,
317 respectively, and, if appropriate, to law enforcement authorities for potential criminal
318 prosecution. [Adopted Jan. 26, 2005; Amended Feb. 12, 2009; Mar. 7, 2019.]

319 2. No member of either branch shall act as counsel for any party before any committee of the
320 Legislature.

321 2A. No member of either branch shall purchase, directly or indirectly, the stock or other
322 securities of any corporation or association knowing that there is pending before the General
323 Court any measure specially granting to such corporation or association any immunity,
324 exemption, privilege or benefit or any measure providing for the creation of, or directly affecting
325 any, contractual relations between such corporation or association and the Commonwealth. This
326 rule shall not apply to the purchase of securities issued by the Commonwealth or any political
327 subdivision of the Commonwealth. [See G.L. chapter 268, section 10.] [Adopted Jan. 16, 1922.]

328 3. When the General Court is in session, authorization for any joint standing committee to travel
329 during the session of the General Court shall be approved by a vote of two-thirds of the
330 committees on Rules of the two branches, acting concurrently. [Adopted Feb. 7, 1890; Amended
331 Feb. 2, 1891 ; Jan. 20, 1904 ; April 17, 1925 ; March 2, 1943 ; July 27, 1950 ; Oct. 18, 1971 ;
332 March 28, 1972 ; Jan. 15, 1973; Feb. 12, 2009.]

333 3A. A joint standing committee may, upon the written and signed report of two-thirds of the
334 members of the Senate and two-thirds of the members of the House appointed to said committee,
335 report a bill or other form of legislation without said legislation being founded upon petition;

provided, however, that matters so reported shall be germane to the subject matters regularly referred to the committee. The committee shall hold a public hearing on such bill or other form of legislation before it is reported. A bill or other form of legislation so reported shall be placed in the Orders of the Day by the Clerk of the respective branch to which it is reported or referred to a standing committee of said branch under the rules. All reports of committees not founded upon petition shall bear the designation 'committee bill', 'resolve', 'order' or 'resolution', as the case may be, in the Orders of the Day. Committees to which messages from the Governor, reports of state officers, boards, committees, commissions and others authorized to report to the General Court, may report by bill or otherwise such legislation as may be germane to the subject matter referred to them. [Adopted June 3, 1985 .]

4. Favorable reports, and adverse reports on subjects of legislation other than petitions, by joint committees shall be made to the branch in which the matter was originally introduced, except that reports on money bills shall be made to the House and if adverse reports on matters other than petitions which are accompanied by money bills are accepted by the House, this shall constitute final rejection. Adverse reports by joint committees on petitions shall be made to the branch in which the petition was originally introduced, except that such adverse reports on petitions accompanied by proposed money bills shall be made to the House; and, if accepted by the branch in which they are made, shall be considered as a final rejection. When a report is made from any committee to either branch, and the subject-matter of the report is subsequently referred to a joint committee, such committee, shall report its action to the branch in which the reference originated. [See also Joint Rule 5.]

All committee members shall have an opportunity to sign a form accompanying a report of the committee signifying approval of, dissent or abstention from a report of a joint standing

committee before the report is final or filed. No signature shall be valid unless the report to which the signature is affixed includes the substantially complete text of the legislation being reported. [Amended Jan. 3, 1952; April 8, 1959; June 7, 1965; Jan. 7, 1971; March 11, 1974; June 3, 1985; Feb. 20, 2007; Feb. 15, 2017.]

4A. In compliance with section 38A of chapter 3 of the General Laws, all joint committees of the General Court when reporting on bills referred to them shall include a fiscal note prepared under section 3A of chapter 29 of the General Laws, showing the estimated cost or the fiscal effect of the proposed legislation, if, in the opinion of said committee, such cost exceeds \$100,000. Such fiscal note shall be filed electronically in the office of the clerk to which the report is being made, and shall be promptly made available on the official website of the General Court. [Adopted Jan. 15, 1973.]

5. Matters reported adversely by joint committees and the committees on Rules of the two branches, acting concurrently, may be recommitted to the same committees at the pleasure of the branch acting on the report, and bills or resolves may be recommitted in either branch. If a bill or resolve is laid aside in either branch for the reason that it is declared to be broader in its scope than the subject-matter upon which it is based, the subject-matter shall be recommitted to the committee. A concurrent vote shall, however, be necessary for re-committal, with instructions. After recommitment, report shall, in all cases, be made to the branch originating the recommitment. [Amended Feb. 2, 1891; April 11, 1935; Jan. 6, 1947; May 7, 1953; March 26, 1963; Jan. 30, 1967; Jan. 7, 1971; March 11, 1974.]

6. Bills and resolves reported by joint committees shall be presented with spaces between the several sections and shall be made available to all members electronically and to the public on

381 the official website of the General Court. [Amended Jan. 28, 1889; Jan. 9, 1941; Feb. 8, 1949;
382 Feb. 12, 2009.]

383 Joint Petitions.

384 6A. A member of the Senate and a member of the House of Representatives may file a joint
385 petition in either branch and shall endorse their name on the petition and a brief statement of the
386 nature and object of the instrument and the reading of the instrument shall be dispensed with,
387 unless specially ordered. The petition shall be filed in the office of the clerk of either the Senate
388 or House of Representatives, depending on whether it is a 'Joint Senate/House Petition' or a
389 'Joint House/Senate Petition' but the Journal records in the Senate and House of Representatives
390 shall carry both members' names as presenters of the petition. [Adopted Jan. 15, 1973.]

391 7. Whenever, upon any application for an act of incorporation or other legislation, the purpose
392 for which such legislation is sought can be secured without detriment to the public interests by a
393 general law or under existing laws, the committee to which the matter is referred shall report
394 such general law, or 'ought not to pass'. [Amended Feb. 2, 1891; Feb. 7, 18 93; Jan. 7, 1971.]

395 7A. A petition for legislation to authorize a county to reinstate in its service a person formerly
396 employed by it, or to retire or pension or grant an annuity to any person, or to increase any
397 retirement allowance, pension or annuity, or to pay any sum of money in the nature of a pension
398 or retirement allowance, or to pay any salary which would have accrued to a deceased official or
399 employee but for their death, or to pay any claim for damages or otherwise, or to alter the
400 benefits or change the restrictions of any county retirement or pension law, shall, subsequently to
401 the procedure required by Senate Rule No. 20 and by House Rule No. 24, be reported adversely,
402 unless, when filed it be the petition of, or be approved by, a majority of the county

commissioners. [Adopted April 29, 1915. Amended Jan. 13, Feb. 19 and Dec. 22, 1920; May 24, 1926; April 11, 1935; April 22, 1937; Jan. 12, 1939; Jan. 15, 1945; Feb. 20, 1951; Jan. 30, 1967; Jan. 7, 1971; Jan. 15, 1973; Mar. 7, 2019.]

7B. A petition, the operation of which is restricted to a particular city or town (and which does not affect the powers, duties, etc., of state departments, boards, commissions, etc., or which does not affect generally the laws of the Commonwealth) and which is not filed in conformity with Section 8 of Article LXXXIX of the Amendments to the Constitution shall, subsequent to the procedure required by Senate Rule 20 and House Rule 24, be reported adversely, unless it be on petition filed or approved by the voters of a city or town, or the mayor and city council, or other legislative body, of a city, or the town meeting of a town. A joint committee to which is inadvertently referred a petition or other subject of legislation the operation of which is restricted to a particular city or town and which is not in conformity with Section 8 of Article LXXXIX of the Amendments to the Constitution shall report a general law which applies alike to all cities, or to all towns, or to all cities and towns, or to a class of not fewer than 2; or shall report ‘ought not to pass’, with the further endorsement that it ‘would be unconstitutional to enact such special law’.

Any petition that subsequently conforms to Section 8 of Article LXXXIX of the Amendments to the Constitution after filing, which have followed the procedures set forth in Senate Rule 20 or House Rule 24, shall be forthwith reported from the committee on Rules and be referred by the Clerk to an appropriate committee.[Adopted Jan. 13, 1920. Amended Feb. 19 and Dec. 22, 1920; May 24, 1926; April 11, 1935; April 22, 1937; Jan. 12, 1939; Jan. 9, 1941; Jan. 15, 1945; Feb. 20, 1951; Jan. 30, 1967; Jan. 7 and Mar. 22, 1971 ; Jan. 15, 1973; March 14, 2013.]

7C. The approval vote required to file a petition, the operation of which is restricted to a particular city or town under Section 8 of Article LXXXIX of the Amendments to the Constitution of the Commonwealth, shall not expire prior to the final day of the next immediate biennial session in which the petition was filed and no additional vote shall be required to file a petition unless a vote to rescind such approval is passed by the voters of a city or town, or the mayor and city council or other legislative body of a city, or the select board and the town meeting or other legislative body of the town. [Adopted, Mar. 14, 2013; Amended Feb. 15, 2017.]

7D. The approval of a substantive amendment to a petition restricted to a single city or town and requiring a vote of the city or town before enactment of the petition shall be provided to the General Court before the enactment of the petition and shall be reviewed by House Counsel and Senate Counsel prior to the enactment of the petition in either branch. [Adopted , Feb. 15, 2017.]

Notice to Parties Interested.

8. No legislation affecting the rights of individuals or the rights of a private or municipal corporation, otherwise than as it affects generally the people of the Commonwealth or the people of the city or town to which it specifically applies, shall be proposed or introduced except by a petition, nor shall any bill or resolve embodying such legislation be reported by a committee except upon a petition duly referred, nor shall such a bill or resolve be reported by a committee, whether on an original reference or on a re-committal with instructions to hear the parties, until it is made to appear to the satisfaction of the committee that proper notice of the proposed legislation has been given by public advertisement or otherwise to all parties interested, without expense to the Commonwealth, or until evidence satisfactory to the committee is produced that

all parties interested have in writing waived notice. A committee reporting adversely due to lack proper notice or of a waiver of proper notice shall so state in its report and no bill or resolve shall be in order as a substitute for, or amendment of, such report. Objection to the violation of this rule may be taken at any stage prior to that of the third reading. [Adopted Feb. 7, 1890. Amended Dec. 22, 1920 ; Jan. 12, 1939 ; Jan. 15, 1945; Jan. 7, 1971.]

9. A petition for the incorporation of a city or town, for the annexation of 1 municipality to another, for the consolidation of 2 or more municipalities or for the division of an existing municipality, or for the incorporation or revival of a railroad, street railway, elevated railroad, canal, telephone, telegraph, water, gas, electric light, power or other public service corporation, for the amendment, alteration or extension of the charter or corporate powers or privileges, or for the change of name, of any such company, whether specially incorporated or organized under the General Laws, or for authority to take water for a water supply, or relative to building structures in or over navigable or tide waters, shall be placed on file, and not referred to a committee, unless the petitioner has given the notice and followed the procedure required by section 5 of chapter 3 of the General Laws. But, if no objection being raised, any such petition is referred to a committee without such required notice or procedure, the committee shall forthwith report adversely, setting forth as the reason for such report failure to comply with the law, unless evidence satisfactory to the committee is produced that all parties interested have in writing waived notice. In case a bill or resolve is reported upon such a petition, after proof of such waiver of notice, this fact shall be set forth in the report of the committee. When an adverse report is made by a committee, on account of failure to give the required notice, no bill or resolve shall be substituted for such report, nor shall such report be recommitted or referred to another committee.

A petition for the establishment or revival, or for the amendment, alteration or extension of the charter or corporate powers or privileges, or for the change of name, of any corporation, except a petition subject to the preceding paragraph, shall be transmitted by the Clerk of the branch in which it is filed to the office of the State Secretary. If such a petition is returned by said Secretary with a statement that the petitioner has failed to comply with the requirements of section 7 of chapter 3 of the General Laws, said petition shall be placed on file, and shall not be referred to a committee.

Any petition placed on file for want of proper notice or procedure under this rule shall not affect action upon any other measure involving the same subject matter. [Adopted Feb. 7, 1890. Amended Feb. 2, 1891; Feb. 3, 1898; Jan. 16, 1903; Feb. 19 and Dec. 22, 1920; May 24, 1926; Feb. 27, 1929; April 11, 1935; Jan. 6, 1938; Jan. 12, 1939; Jan. 9, 1941; Jan. 15, 1945; April 8, 1959; Jan. 7, 1963; Jan. 7, 1971 ; Jan. 15, 1973 , June 12, 1995; Feb. 12, 2009; Mar. 7, 2019.]

Limit of Time allowed for Reports of Committees.

10. All joint committees and the committees on Rules of the two branches, acting concurrently, shall make final report on all matters referred to and heard by them prior to the third Wednesday of December of the first annual session of the General Court by not later than 60 calendar days after the matter is heard; provided, however, that an additional 30 calendar days may be granted on a matter by the chair of the committee on the part of the branch in which the matter was respectively filed who shall notify the clerk of their respective branch of said extension. After the expiration of such 90-day period, the branch in which a matter was filed shall approve by unanimous consent an extension order submitted by the members of the joint committee from their respective branch for any additional time for further consideration of the matter. However, a

492 committee shall not make final report after, and a branch shall not approve of an extension order
493 that extends consideration of a matter beyond, the third Wednesday in March of the second
494 annual session of the General Court. For matters referred to a committee and heard by said
495 committee after the third Wednesday of December of the first annual session, the committee
496 shall make final report by not later than 60 calendar days after the matter is heard, or by the third
497 Wednesday in March of the second annual session, whichever occurs later. For all matters
498 referred to the committee on Health Care Financing after the third Wednesday in March of the
499 second annual session which were initially referred to another joint standing committee, the
500 committee shall make final report not later than the last Wednesday of May of the second annual
501 session.

502 When the time within which said committees are required to report has expired, all matters upon
503 which no report has then been made shall forthwith be reported by the chair of the committee on
504 the part of the branch in which they were respectively introduced, with a recommendation to
505 study under this rule.

506 Matters which have been referred under Joint Rule 29, upon which the chairs of the committees
507 on Rules fail to make a report, shall be placed by the respective Clerks in the Orders of the Day
508 of the branch in which the subject matter was referred to said committees.

509 Committees to whom are referred subjects of legislation may combine petitions of similar
510 subject matter, or other forms of legislation of similar subject matter, into 1 adverse report, and
511 the report on the petition shall be that said petitions or other forms of legislation 'ought NOT to
512 pass,' and if the report is accepted, all the matters contained in the report shall be disposed of.
513 However, petitions upon which an adverse report is accepted in only 1 branch may not be

514 combined with other subjects of legislation upon which adverse reports must be accepted, in
515 concurrence. This rule shall not apply to petitions referred to the committees on Rules of the two
516 branches, acting concurrently, under the second paragraph of Joint Rule 12.

517 This rule shall not be rescinded, amended or suspended, except by a concurrent vote of four-
518 fifths of the members of each branch present and voting thereon. Notwithstanding Joint Rule 30,
519 this rule shall not be rescinded, amended or suspended more than 3 times except by unanimous
520 consent. [Amended Feb. 2, 1891; Jan. 25, 1894; Jan. 16, 1903; Jan. 20, 1904; Dec. 22, 1920;
521 April 17, 1925; Jan. 12, 1939; Jan. 15, 1945; Jan. 6, 1947; May 7, 1953; Jan. 27, 1955; Jan. 30,
522 1967; Jan. 7, 1971; Feb. 4, 1974, June 12, 1995; July 17, 2003; Feb. 20, 2007; Feb. 12, 2009;
523 Feb. 15, 2017; Mar. 7, 2019.]

524 10A. The form for all subjects of legislation receiving a favorable report shall be ‘ought to pass.’
525 The form for all subjects of legislation receiving an adverse report shall be ‘ought NOT to pass.’
526 A committee to whom is referred any other matter may report recommending that the same be
527 placed on file. [Adopted Jan. 7, 1971.]

528 Committees of Conference.

529 11. Committees of conference shall consist of 3 members on the part of each branch, one
530 member of each branch being a member of the minority party representing its vote; and their
531 report, if agreed to by a majority of each committee, shall be made to the branch asking for the
532 conference, and may be either accepted or rejected, but no other action shall be had, except
533 through a new committee of conference.

534 Committees of conference to whom are referred matters of difference in respect to bills or
535 resolves, shall, after filing their reports, but before consideration by either branch, have the same

536 approved or discharged by each committee on Bills in the Third Reading. [Amended April 22,
537 1937; Feb. 12, 2009; Feb. 3, 2011; Feb. 15, 2017; Mar. 7, 2019.]

538 11A. Committees of conference to whom are referred matters of difference in respect to
539 appropriation bills, including capital outlay programs, shall, after filing their reports but before
540 consideration by either branch have the same approved or discharged by each committee on Bills
541 in the Third Reading.

542 Upon the appointment of a committee of conference to whom matters of difference in respect to
543 any appropriation bill or in respect to any bill providing for capital outlay programs and projects
544 are referred, the clerk of the branch requesting said committee of conference shall make
545 available to members of the General Court a list of the matters in disagreement identified by item
546 number and item purpose and showing the amount made available by each branch of the General
547 Court, and any other matters in disagreement and the position of each of the said branches.

548 The report of said committee of conference shall consist of the matters of difference so referred
549 and so identified, showing the amounts appropriated by each of the said branches and other
550 matters in disagreement and the position of each branch with respect to those matters, and shall
551 state said committee's recommendations with respect to the matters so referred. Matters on which
552 there exists no disagreement between the branches shall not be disturbed by the committee of
553 conference.

554 The committees on ways and means of each branch of the General Court shall assist such
555 committee of conference in any and all matters necessary to the preparation and completion of its
556 report. [Adopted July 30, 1974; Amended Oct. 3, 1983; Feb. 3, 2011.]

557 11B. No report from a committee of conference shall be considered or acted upon by either
558 branch until the calendar day following the day on which said report shall have been available to
559 the public and to the members of the General Court. The committee shall file its report no later
560 than 8 p.m. on the day preceding its consideration and the General Court shall not consider said
561 report before 1 p.m. on the following day, except that a report from such committee of
562 conference that it is unable to agree may be considered and acted upon at the time that such
563 report is filed. [Adopted Oct. 3, 1983. Amended July 17, 2003; July 21 and September 20, 2005;
564 Feb. 3, 2011.]

565 11C. Reports, other than those filed under Rule 11A, from a committee of conference shall be
566 accompanied by a summary which shall describe the matters in disagreement, the position of
567 each branch with respect to those matters, and the committee's recommendations with respect to
568 the matters so described, and shall be filed with the clerk. [Adopted Feb. 12, 2009; Feb. 3, 2011.]

569 11D. Upon the filing of a report by a committee of conference the clerk of the branch in which
570 the committee of conference filed its report shall make the report and the summary of the report
571 available to all members electronically and to the public on the official website of the General
572 Court. [Adopted Feb. 12, 2009; Feb. 3, 2011.]

573 11E. Subsequent to the filing of a report of a committee of conference, an addendum may be
574 submitted to the clerk of the branch in which the report had been filed. The addendum shall
575 indicate that it contains only matters inadvertently omitted from or included in the report, and
576 shall be signed by all of members of the House and Senate who had signed the conference
577 committee report. The addendum shall be approved by both the Counsel to the House and the
578 Counsel to the Senate. The addendum, having been approved by both the Counsel to the House

579 and the Counsel to the Senate, shall be posted to the official website of the General Court
580 immediately upon receipt by the clerk of the branch to which it was submitted. [Adopted Mar.14,
581 2013.]

582 Limit of Time allowed for New Business.

583 12. Resolutions intended for adoption by both branches of the General Court, petitions, and all
584 other subjects of legislation, shall be deposited with the Clerk of either branch prior to 5 p.m. on
585 the third Friday in January of the first annual session of the General Court.

586 All such matters except messages from the Governor, reports required or authorized to be made
587 to the General Court and petitions filed or approved by the voters of a city or town, or the mayor
588 and city council, or other legislative body of a city, or the town meeting of a town, for the
589 enactment of a special law under Section 8 of Article LXXXIX of the Amendments to the
590 Constitution and which do not affect the powers, duties, etc., of state departments, boards,
591 commissions, etc., or which do not affect generally the laws of the Commonwealth deposited
592 with the respective clerks subsequent to 5 p.m. on the third Friday of January of the first annual
593 session of the General Court shall be referred by the Clerks to the committees on the Rules of the
594 two branches, acting concurrently. No such matter shall be admitted for consideration except on
595 report of the committees on Rules of the two branches, acting concurrently, and then upon
596 approval of two-thirds of the members of each branch voting thereon. Matters upon which
597 suspension of Joint Rule 12 has been negated shall be placed on file.

598 At any special session called under Rule 26A, however, matters relating to the facts constituting
599 the necessity for convening such session shall, if otherwise admissible, be admitted as though
600 filed seasonably under the first sentence of this rule. Any recommendations from the Governor

shall be similarly considered. This rule shall not be rescinded, amended or suspended, except by a concurrent vote of two-thirds of the members of each branch present and voting thereon.

[Amended Feb. 7, 18 90; Feb. 2, 18 91; Feb. 7, 18 93; Jan. 10, 18 98; Jan. 9, 18 99; Feb. 15, 19 01; May 4, 19 04; Jan. 31, 19 10; Feb. 2, 19 17; Dec. 22, 19 20; March 30, 19 21; Jan. 30, 19 23; Feb. 15, 19 33; Jan. 12 and Aug. 7, 19 39; Jan. 15, 19 45; Jan. 6, 19 47; May 27, 19 48; Jan. 30, 19 67; March 26, 19 69; Jan. 7, 1971 ; Jan. 15 and Oct. 2, 1973 ; Oct 3, 1983 , June 12, 1995 ; Jan. 26, 2005; July 17, 2003; Jan. 26, 2005; July 21, 2005; Sept. 20, 2005; Feb. 12, 2009.]

12A. All formal business of the first annual session of the General Court shall be concluded not later than the third Wednesday in December of that calendar year and all formal business of the second annual session shall be concluded not later than the last day of July of that calendar year; provided, however, that the Senate and House of Representatives may convene for formal business solely for the purposes of considering: (i) reports of committees of conference formed on or before the last day of July of the second annual session, (ii) appropriation bills filed after the last day of July of said second annual session, (iii) passage of legislation, notwithstanding the objections of the Governor, that was enacted after acceptance of a report of a committee of conference but was returned by the Governor with the Governor's objections pursuant to Article II of Section I of Chapter I of Part the Second of the Constitution of the Commonwealth; or (iv) re-enactment of legislation that was originally enacted after acceptance of a report of a committee of conference but was returned by the Governor with a recommendation to amend pursuant to Article LVI of the Amendments to the Constitution. This rule may be suspended by either branch by a vote of a majority of members present and voting in that branch.

In order to assist the Senate and House in its analysis and appraisal of laws enacted by the General Court, each joint standing committee, upon conclusion of the formal business of the

624 annual sessions, shall, as authorized by Joint Rule 1, initiate oversight hearings to evaluate the
625 effectiveness, application and administration of the subject matter of laws within the jurisdiction
626 of that committee. [Adopted June 12, 1995.]

627 Unfinished Business of the Session.

628 12B. Any matter pending before the General Court at the end of the first annual session and any
629 special session held in the same year shall carry over into the second annual session of the same
630 General Court in the same legislative status as it was at the conclusion of the first annual session
631 or any special session held during that year; provided, however, that any measure making or
632 supplementing an appropriation for a fiscal year submitted to or returned to the General Court by
633 the Governor, under Article LXIII of the Amendments to the Constitution, in the first annual
634 session or in a special session held during that year shall cease to exist upon the termination of
635 the first annual session. [Adopted June 12. 1995.]

636 Papers to be deposited with the Clerks.

637 13. Information intended for presentation to the General Court by any Representative or Senator
638 shall be deposited with the Clerk of the branch to which the member belongs; and all such
639 information, unless they be subject to other rules or of the rules of the Senate or House, shall be
640 referred by the Clerk, with the approval of the President or Speaker, to appropriate committees,
641 subject to such changes as the Senate or House may make. The reading of information so
642 referred may be dispensed with, but they shall, except as provided in these rules, be entered in
643 the Journal of the same on the next legislative day after such reference.

644 A member may include a brief statement of intent with all papers intended for presentation to the
645 General Court. Upon a favorable report by a joint standing committee, a committee may include

646 a brief written statement of intent. Said statement shall be dated and shall include the scope of
647 the matter presented for consideration; provided, however, this rule shall not be construed to
648 require the presentation of such statement of intent under this rule. [Adopted Feb. 7, 1890.
649 Amended Feb. 2, 1891; Feb. 7, 1893; Jan. 25, 1894; Dec. 22, 1920; May 25, 1923; Feb. 15,
650 1933; Jan. 12, 1971; June 3, 1985; Feb. 12, 2009.]

651 Dockets of Legislative Counsel and Agents.

652 14. The committees on Rules of the two branches, acting concurrently, may prescribe the manner
653 and form of keeping the dockets of legislative agents which are required by law. [Adopted Feb.
654 2, 1891; Amended Feb. 19, 1920.]

655 Duties of the Clerk.

656 15. If any part of the report of a committee over the signature of the chair or members of the
657 committee is amended in either branch, the Clerk of that branch shall endorse upon the report
658 such amendment. [Amended Mar. 7, 2019.]

659 16. All papers, while on their passage between the 2 branches, may be under the signature of the
660 respective Clerks, except as to the adopting of emergency preambles and the final passage of
661 bills and resolves. Messages may be sent by such persons as each branch may direct. [Amended
662 Feb. 21, 1919.]

663 17. After bills and resolves have passed both branches to be engrossed, they shall be in the
664 charge of the Clerks of the 2 branches, who shall prepare the same for final passage in the
665 manner prescribed by law; and when so prepared the same shall be delivered to the Clerk of the
666 House of Representatives; and when the bills have been passed to be enacted or the resolves have

667 been passed in the House, they shall, in like manner, be delivered to the Senate Clerk and
668 Parliamentarian. If a bill or resolve contains an emergency preamble, it shall be delivered in like
669 manner, to the Senate after the preamble has been adopted by the House of Representatives and
670 before the bill or resolve is put upon its final passage in that branch. If the Senate concurs in
671 adopting the preamble, the bill or resolve shall be returned to the House to be there first put upon
672 its final passage, under Joint Rule No. 22. [Amended Feb. 24, 1914; Feb. 21, 1919; Jan. 7, 1971.]

673 18. [Omitted in 1971.]

674 19. The Clerk of the branch in which a bill or resolve originated shall make an endorsement on
675 the envelope of the engrossed copy of the bill, certifying in which branch the bill originated,
676 which endorsement shall be entered on the journals by the Clerks respectively. [Amended Jan.
677 28, 1889; Feb. 24, 1914.]

678 20. Bills, resolves and other papers requiring the approval of the Governor shall be laid before
679 the Governor for the Governor's approbation by the Senate Clerk and Parliamentarian, who shall
680 enter upon the journal of the Senate the day and date on which the same were so laid before the
681 Governor. [Amended Jan. 28, 1889; Jan. 7, 1971.]

682 Presentation and Distribution of Documents.

683 21. The committees on Rules of the two branches, acting concurrently, may establish regulations
684 for the distribution of bills, reports or other documents. Bills, reports or other documents shall be
685 made available to members electronically and, except for petitions or other documents not
686 assigned bill numbers, published on the Internet. The committees on Rules of the two branches,
687 acting concurrently, may make such changes pertaining to the availability of bills, reports or
688 other documents as they deem necessary for expediting the work of the legislature.

689 The Clerks of the House of Representatives and the Senate shall be responsible for publishing
690 the journals of their respective chamber, the book Public Officers of Massachusetts, the
691 committee book and any other publications per order of the committees on Rules. [Amended Jan.
692 8, 1886 ; Jan. 28, 1889 ; Jan. 27, 1911 ; Feb. 19, 1920 ; Jan. 6, 1947 ; Apr. 5, 19 67 ; Jan. 7,
693 1971; Feb. 12, 2009; Mar. 14, 2013.]

694 Emergency Measures.

695 22. The vote on the preamble of an emergency law, which under the requirements of Article
696 XLVIII, as amended by Article LXVII of the Amendments of the Constitution shall, upon
697 request of 2 members of the Senate or of 5 members of the House of Representatives, be taken
698 by call of the yeas and nays, shall be had after the proposed law has been prepared for final
699 passage; and neither branch shall vote on the enactment of a bill or on the passage of a resolve
700 containing an emergency preamble until it has been determined whether the preamble shall
701 remain or be eliminated. If the bill contains an emergency preamble, a motion to amend the bill
702 may be received in either branch before the adoption of the emergency preamble, and the
703 amendment may contain a new emergency preamble. If the 2 branches concur in adopting the
704 preamble, the bill or resolve shall first be put upon its final passage in the House of
705 Representatives. If either branch fails to adopt the preamble, notice of its action shall be sent to
706 the other branch; and the bill or resolve, duly endorsed, shall again be prepared for final passage
707 without the preamble and without any provision that the bill or the resolve shall take effect
708 earlier than 90 days after it has become law. Procedure shall be otherwise under the joint rules
709 and the rules of the Senate and the House of Representatives. [Adopted Feb. 21, 1919. Amended
710 Jan. 30, 1923; Jan. 7, 1971; Feb. 20, 2007; Feb. 12, 2009.]

22A. Bills and resolves passed to be engrossed by both branches and before being transmitted by the clerks to the Legislative Engrossing Division shall be made available to the committees on Bills in the Third Reading of the two branches, acting jointly, who shall examine them to ensure accuracy in the text; that the legislation is correct as to form; that references to previous amendments to any particular law are correct and to ensure proper consistency with the language of existing statutes. These committees, with the approval of the majority and minority leadership of both branches may make corrections which are not substantive in nature. The clerks of both branches shall be immediately notified, in writing, of any such changes. Errors discovered by the committees of a substantive nature shall be reported to the General Court, which in turn shall take appropriate action under its rules. Upon completion of examination and possible correction of any such bills and resolves, the bills and resolves shall be returned to the clerks, who in turn, shall transmit them to the Legislative Engrossing Division to be prepared for final passage.

[Adopted Sept. 16, 1971.]

Legislative Amendments to the Constitution.

23. All proposals for amendments to the Constitution referred to a joint committee on the first annual session of the General Court shall be reported by said committee not later than the last Wednesday of April in said year, and proposals for amendments to the Constitution referred to a joint committee subsequent to the last Wednesday in April of the first annual session shall be reported by said committee not later than the last Wednesday of April in the second session of the same General Court. The committee shall file its report, either recommending that the proposal ought to pass or ought not to pass, with any official papers in its possession that relate thereto, with the Clerk of the Senate. When the time within which said committees are required to report has expired, all matters upon which no report has been made shall forthwith be placed

734 in the Journal of the respective branches, with an adverse report under this rule; and shall then be
735 placed on file in the office of the Clerk of the Senate. For further information of the members of
736 the Senate and House of Representatives, the respective Clerks shall also place all such matters
737 under a separate heading in the Calendar of each branch, as soon as is practicable. In each branch
738 the report shall be read and forthwith placed on file; and no further legislative action shall be
739 taken on the measure unless consideration in joint session is called for by vote of either branch,
740 under Section 2 of Part IV of Article XLVIII (as amended by Article LXXXI) of the
741 Amendments to the Constitution. A joint committee to which is referred any recommendation for
742 an amendment to the Constitution made by the Governor or contained in a report authorized to
743 be made to the General Court may report on the recommendation a proposal for a legislative
744 amendment, which shall be deemed to have been introduced by the member of the Senate who
745 reports for the committee; and the procedure as regards reporting, filing and subsequent action
746 shall be that provided for legislative amendments by this rule. Or the joint committee may report
747 ought not to pass for the reason that no legislation is necessary or that the recommendation ought
748 not to pass; and in such cases the usual procedure as regards similar reports by joint committees
749 shall be followed. If such an adverse report is amended in the Senate by substituting a proposal
750 for a legislative amendment, notice of the Senate's action shall be sent to the House and said
751 proposal, together with the official papers relating to the subject, shall be in the custody of the
752 Clerk of the Senate; and if said report is so amended in the House, the proposal, duly endorsed,
753 together with the other papers, shall be sent to the Senate for its information and shall be kept in
754 the custody of its Clerk. No further legislative action shall be taken in either branch on a proposal
755 so substituted unless consideration in joint session is called for under the Constitution. If either
756 branch calls for the consideration of any proposal in joint session, notice of its action shall be

757 sent to the other branch; and it shall then be the duty of the Senate and the House of
758 Representatives to arrange for the holding of the joint session not later than the second
759 Wednesday in May. Subject to the requirements of the Constitution, joint sessions or
760 continuances of joint sessions of the 2 branches to consider proposals for specific amendments to
761 the Constitution, and all rules or procedures, shall be determined only by concurrent votes of the
762 2 branches. The rules relative to joint conventions shall apply to the joint sessions of the 2
763 houses. [Adopted Feb. 21, 1919. Amended March 30, 1921; April 11, 1935; Jan. 12, 1939; Jan.
764 15, 1945; Nov. 9, 1951; Jan. 15, 1973; July 1, 1974; Feb. 12, 2009.]

765 Executive Reorganization Plans.

766 23A. Any reorganization plan, accompanied by a bill, submitted by the Governor under Article
767 LXXXVII of the Amendments to the Constitution shall be referred by the Clerks of the Senate
768 and the House, with the approval of the President and Speaker, to a joint standing committee
769 within 5 days of the presentation of the reorganization plan.

770 Said committee, to which is referred any such reorganization plan, shall, as required by said
771 Article, not later than 30 days after the presentation of such plan by the Governor, hold a public
772 hearing on the reorganization plan; and shall not later than 10 days after such hearing report that
773 it either approves or disapproves such plan.

774 When recommending action, the committee shall make, in each branch, a separate report of its
775 recommendations, and shall file said report together with the committee's recommendations and
776 the reasons for those recommendations, in writing. Majority and minority reports shall be signed
777 by the members of said committee. Any official papers in the possession of said committee that
778 relate thereto shall be filed with the Clerk of the Senate.

779 If the committee recommends favorable action, the report shall be that the reorganization plan
780 'ought to be approved'. If the committee recommends adverse action, the report shall be that the
781 reorganization plan 'ought NOT to be approved'. In each instance, the question shall be 'Shall
782 this reorganization plan be approved?'

783 In each branch, the report shall be read and forthwith recorded in the Journal. On the legislative
784 day next following the Journal record, the report shall be placed in the Orders of the Day of the
785 Senate and the House.

786 When the time within which a joint committee is required to report on a reorganization plan has
787 expired, a matter upon which no report has been made shall forthwith be placed in the Orders of
788 the Day by the Clerks of each branch and the question shall be 'Shall this reorganization plan be
789 approved?'.

790 When such plan is before either branch, no motion relating to said plan shall be allowed except
791 the motions to lay on the table (only in the Senate), to postpone to a time certain, or to commit or
792 recommit (at the pleasure of either branch). The motions to take a recess, to adjourn, the previous
793 question (if provided in the branch debating the issue), to close debate at a specified time, and
794 the motion to reconsider shall also be in order.

795 A motion to discharge any committee to which is referred or to which is recommitted a
796 reorganization plan shall not be in order prior to the expiration of 40 days after the Governor's
797 presentation of such plan. After the expiration of said 40 days, a motion to discharge a committee
798 shall be decided by a majority vote of the branch in which the motion is made.

799 Unless disapproved by a majority vote of the members of either of the 2 branches of the General
800 Court present and voting, the General Court not having prorogued within 60 days from the date

801 of presentation by the Governor, the plan shall be approved and shall take effect as provided by
802 Article LXXXVII of the Amendments to the Constitution.

803 Within 7 days of the expiration of the 60 days from the date of presentation of said plan by the
804 Governor, unless the question has already been decided, the Clerks of the Senate and House of
805 Representatives shall place the plan in the Orders of the Day; and no motions except the motions
806 to take a recess, to adjourn, and previous question, or to close debate at a specified time, shall be
807 in order.

808 No such reorganization plan presented to the General Court shall be subject to change or
809 amendment before expiration of such 60 days. [Adopted June 13, 1967; Amended March 27,
810 1969; June 12, 1995; Feb. 12, 2009.]

811 Joint Conventions.

812 24. The President of the Senate shall preside in Conventions of the 2 branches, and such
813 Conventions shall be held in the Representatives' Chamber; the Senate Clerk and
814 Parliamentarian shall be the Clerk of the Convention, and a record of the proceedings of the
815 Convention shall be entered at large on the journals of both branches. [Amended Feb. 20, 2007.]

816 25. When an agreement has been made by the 2 branches to go into Convention, such agreement
817 shall not be altered or annulled, except by concurrent vote, excepting that it shall be in order to
818 recess the convention from time to time upon a majority vote of said convention. [Amended Jan.
819 7, 1971 .]

820 26. No business shall be entered on, in Convention, other than that which may be agreed on
821 before the Convention is formed.

822 Special Sessions.

823 26A. If written statements of 21 members of the Senate and 81 members of the House of
824 Representatives, that in their opinion it is necessary that the General Court assemble in special
825 session on a particular date and time specified in their statements during a recess of the General
826 Court, are filed with their respective Clerks, such Clerks shall forthwith notify all the members
827 of their respective branches to assemble at the State House in Boston, on said date at the time so
828 specified. When so assembled, the first business to be taken up shall be the question of the
829 necessity of so assembling, under Article I of Section I of Chapter I of Part the Second of the
830 Constitution of the Commonwealth. If 21 members of the Senate and 81 members of the House
831 of Representatives judge by vote taken by call of the yeas and nays that such assembling of the
832 General Court is necessary, specifying in such vote the facts constituting such necessity, the
833 General Court shall then complete its organization as a special session, proceed to the
834 consideration of the suspension of Joint Rule 12A which if suspended by the required two-thirds
835 of the members of both branches shall permit the General Court to proceed to the consideration
836 of matters properly before it. Nothing in this rule shall prevent the General Court from
837 assembling in any other constitutional manner when it judges necessary. [Adopted Aug. 7, 1939.
838 Amended March 2, 1943; March 27, 1969; May 5, 1979; July 17, 2003; July 21 and September
839 20, 2005.]

840 Joint Elections.

841 27. In all elections by joint ballot a time shall be assigned for such election at least 1 day
842 previous to such election.

843 27A. In all cases of elections by ballot a majority of the votes cast shall be necessary for a
844 choice, and where there shall be no such a majority on the first ballot the ballots shall be repeated
845 until a majority is obtained; and in balloting, blanks shall be rejected and not taken into the count
846 in the enumeration of votes, excepting that when the number of blanks shall be more than the
847 number of votes received by the candidate having the highest number of votes, then the election
848 shall be declared void and the balloting shall be repeated as provided herein. [Adopted March 27,
849 1969 .]

850 28. [Omitted March 28, 1972 .]

851 References to the Committees on Rules.

852 29. All motions and orders authorizing joint committees to travel or to employ stenographers, or
853 authorizing joint committees or special commissions composed as a whole or in part of members
854 of the General Court to make investigations or to file special reports, all propositions reported by
855 joint committees which authorize investigations or special reports by joint committees or by
856 special commissions composed as a whole or in part of members of the General Court, all
857 motions or orders proposed for joint adoption which provide that information be transmitted to
858 the General Court, and all matters referred under the second paragraph of Joint Rule 12, shall be
859 referred without debate to the committees on Rules of the two branches acting concurrently, who
860 shall report on the matter, under Joint Rule 10. All matters which have been referred under this
861 rule shall, in each instance, be reported back into the branch making such reference. [Adopted
862 Jan. 10, 1898. Amended Jan. 20, 1904; Jan. 28, 1913; Feb. 19 and Dec. 22, 1920; April 11, 1935;
863 April 22, 1937; Jan. 27, 1955; Jan. 30, 1967; Oct. 18, 1971.]

864 29A. Meetings of any special commission, special legislative commission, task force or other
865 group authorized or required by a statute, resolve, rule, or order to make or conduct an
866 investigation or study of any issue shall be conducted openly and transparently. Meetings of any
867 special commission, special legislative commission, task force or other group authorized or
868 required by a statute, resolve, rule, or order to make or conduct an investigation or study of any
869 issue and which are chaired by members of the general court shall be posted and conducted
870 pursuant to the rules of the senate and house of representatives and shall be conducted according
871 to the following requirements:

872 a.) Meetings shall be open to the public;

873 b.) Meetings shall be announced by appropriate notice at least 72 hours in advance;

874 c.) Any documents used in a meeting be provided to the public upon request in a manner to
875 be determined by the chair;

876 d.) Public testimony shall be accepted in a manner to be determined by the chair;

877 e.) The chair shall maintain a summary of the subjects discussed at each meeting, a list of
878 documents and other exhibits used at the meetings, and shall maintain a record of proceedings,
879 including a record of all votes. For the purposes of this rule a video or audio recording made
880 available to the public shall be considered an adequate record of the proceedings. [Adopted, Feb.
881 15, 2017; Amended Mar. 7, 2019.]

882 30. Omitted.

883 Members.

884 31. A member of either branch who directly or indirectly solicits for such member or others any
885 position or office within the gift or control of a railroad corporation, street railway company, gas
886 or electric light company, telegraph or telephone company, aqueduct or water company, or other
887 public service corporation, shall be subject to suspension for such solicitation, or to such other
888 penalty as the branch of which the person is a member may see fit to impose. [See G. L. 271, sec.
889 40.] [Adopted May 22, 1902.]

890 Accommodations for Reporters.

891 32. Subject to the approval and direction of the committees on Rules of the two branches, acting
892 concurrently, during the session, and of the President of the Senate and the Speaker of the House
893 of Representatives after prorogation, the use of the rooms and facilities assigned to reporters in
894 the State House shall be under the control of the organizations of legislative reporters known as
895 the Massachusetts State House Press Association and the State House Broadcasters Association.
896 No person shall be permitted to use such rooms or facilities who is not entitled to the privileges
897 of the reporters' galleries of the Senate or of the House. Within 10 days after the General Court
898 convenes the Massachusetts State House Press Association and the State House Broadcasters
899 Association shall each transmit to the President of the Senate, the Speaker of the House of
900 Representatives and the Sergeant-at-Arms a list of the legislative reporters with the principal
901 publication or news service which each represents. [Adopted Jan. 27, 1911. Amended Feb. 24,
902 1914; Feb. 19, 1920; April 17, 1925; May 23, 1979; Feb. 12, 2009.]

903 Suspension of Rules.

904 33. Any joint rule except Rule 10, 12A and Rule 30 may be altered, suspended or rescinded by a
905 concurrent vote of two-thirds of the members of each branch present and voting thereon.

906 [Amended Feb. 7, 1893. Adopted in revised form Jan. 9, 1899. Amended Jan. 16, 1903; Jan. 26,
907 2005.]

908 Audit of Accounts.

909 34. (a) The committees on Rules of the two branches, acting concurrently, shall, upon receipt of
910 the recommendation of the state auditor pursuant to subsection (b), provide that an outside,
911 independent financial audit of joint financial accounts be conducted for each fiscal year upon
912 receipt of the fiscal year end appropriation activity with balance report from the comptroller of
913 the Commonwealth. The outside, independent financial audit shall be conducted in accordance
914 with the standards for audits of governmental organizations, programs, activities and functions,
915 commonly referred to as the “Generally Accepted Government Auditing Standards (GAGAS)”
916 or “Yellow Book,” published by the Comptroller General of the United States. The committees
917 shall provide the independent auditor with requested financial documents for such financial
918 audit. A copy of the completed outside, independent financial audit shall be filed with the Clerks
919 of the Senate and the House of Representatives and the state auditor, and shall be posted on the
920 official website of the General Court.

921 (b) The committees on Rules of the two branches, acting concurrently, and with the assistance of
922 the House Business Manager and the Chief Financial Officer of the Senate, shall annually
923 request that the state auditor recommend a private, independent auditing firm to conduct the
924 independent financial audit of joint financial accounts required by subsection (a). The state
925 auditor shall, within 30 days of the committees’ request, recommend to the committees a private,
926 independent auditing firm from the list of private, independent auditing firms on the appropriate
927 statewide procurement contract established by the operational services division. The committees

928 shall cause a contract to be executed with the private, independent auditing firm recommended
929 by the state auditor pursuant to a statewide procurement contract established by the operational
930 services division. If the state auditor fails to recommend a private, independent auditing firm to
931 serve as the independent auditor of joint financial accounts within 30 days of receiving a request
932 from the committees, then the committees shall retain a private, independent auditing firm from
933 the appropriate statewide procurement contract established by the operational services division.

934 (c) The provisions of this rule shall apply to fiscal years beginning on July 1, 2025.

935 [Adopted May 30, 1985.]

936 35. The committees on Rules of the two branches, acting concurrently, shall conduct a
937 comprehensive review of the joint rules adopted by the Senate and the House of Representatives
938 for the 194th General Court. The committees may conduct public hearings and solicit public
939 testimony from interested parties. The committees shall submit a report to both branches at the
940 conclusion of their review by no later than December 31, 2026.

941 [Adopted June 12, 1995.]

942 Procurement.

943 36. (a) The House Business Manager and Chief Financial Officer of the Senate shall complete
944 the procurement of all goods and services from the joint legislative accounts. Procurements for
945 goods or services shall be made pursuant to a statewide procurement contract established by the
946 operational services division, to the extent practicable, as determined by the House Business
947 Manager and the Chief Financial Officer of the Senate. If the Business Manager and the Chief
948 Financial Officer determine that a procurement cannot be made using a statewide procurement

949 contract established by the operational services division, they may procure the required goods or
950 services under subsections (b), (c) or (d).

951 (b) Procurement of a supply or service from a vendor not on a statewide procurement contract
952 valued at less than \$10,000 shall be made at the discretion of the House Business Manager and
953 the Chief Financial Officer of the Senate.

954 (c) If the House Business Manager and the Chief Financial Officer of the Senate seek to procure
955 a supply or service from a vendor not on a statewide procurement contract valued at \$10,000 or
956 more, but less than \$100,000, they shall seek written or oral quotations from not fewer than 3
957 persons customarily providing such supply or service. The House Business Manager and the
958 Chief Financial Officer of the Senate shall record the names and addresses of all persons from
959 whom quotations were sought, the names and addresses of all persons submitting quotations and
960 the date and amount of each quotation. The House Business Manager and the Chief Financial
961 Officer of the Senate shall transmit said records to House and Senate Counsel for review with a
962 recommendation as to what quotation offers the needed quality of supply or service at the best
963 value for the General Court. Upon completion of the review by the House and Senate Counsels,
964 the House Business Manager and the Chief Financial Officer of the Senate shall award the
965 contract to the responsible person whose quotation offers the needed quality of supply or service
966 and which represents the best value for the General Court.

967 (d) If the House Business Manager and the Chief Financial Officer of the Senate seek to procure
968 a supply or service from a vendor not on a statewide procurement contract valued at \$100,000 or
969 more, the House Business Manager and the Chief Financial Officer of the Senate shall seek
970 proposals through a competitive bid process, which shall be established by the House and Senate

971 Counsel; provided, however, that House and Senate Counsel shall file the competitive bid
972 process with the Clerk of the House and the Clerk of the Senate no later than March 31st of the
973 first year of the session.

974 (e) The House Business Manager and the Chief Financial Officer of the Senate shall maintain a
975 file on each procurement not executed using a statewide procurement contract established by the
976 operational services division and in excess of \$10,000 and shall include in such file all
977 documents constituting the agreement for goods and services and all documents required by
978 subsection (c) or (d). The files maintained shall be available for inspection by members of the
979 General Court during regular business hours unless the information is otherwise protected by
980 state or federal law.

981 (f) Whenever the time required to comply with a requirement of this rule would endanger the
982 health, safety or convenience of the members, staff or visitors to the House of Representatives or
983 Senate the House Business Manager and the Senate Chief Financial Officer may make an
984 emergency procurement without satisfying the requirement of this rules; provided, however, that
985 both the House Business Manager and the Senate Chief Financial Officer certify in writing that:
986 (i) an emergency exists and explain the nature thereof; (ii) the emergency procurement is limited
987 to only supplies or services necessary to meet the emergency; (iii) shall conform to the
988 requirements of rule to the extent practicable under the circumstances; (iv) each contractor's
989 name, (v) the amount and the type of each contract; (vi) the supplies or services provided under
990 each contract; (vii) and basis for determining the need for an emergency procurement.

991 (g) Notwithstanding subsection (a) and (d), all procurements for legal consulting services and
992 legal resources shall be handled exclusively by House and Senate Counsel in compliance with
993 the provisions of this rule.

994 (h) If, in the determination of the House Business Manager and the Chief Financial Officer of the
995 Senate, an emergency procurement of greater than \$10,000 is necessary, the House Business
996 Manager and the Chief Financial Officer of the Senate may procure the goods or services
997 immediately and create and maintain a file explaining the nature of the emergency and the goods
998 or services that were procured as a result. The House Business Manager and the Chief Financial
999 Officer of the Senate shall document the goods or services that were procured, the process used
1000 to procure the goods or services, the vendors that were contacted and any other information
1001 relevant to the procurement, and make that information available to members of the General
1002 Court during regular business hours, unless the information is otherwise protected by state or
1003 federal law. [Adopted Mar. 14, 2013; Amended Feb. 15, 2017; Mar. 7, 2019].

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